



CODE OF PROCEDURES FOR THE STATE OF SAN ANDREAS

Governed and upheld by the Department of Justice
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Article 1. General provisions

- 1.1** The Code of Procedures establishes the principles of civil justice, in conjunction with the Penal Code, commences and empowers the state organizations with their official duties and responsibilities, coincided with the principles of justice. The Code of Procedures for the State of San Andreas must be interpreted and adhered in its entirety, in line with the moral values of law.
- 1.2** The objectives of the Code of Procedures are as follows
 - 1.2.1** Protection of liberties asserted to those of civil, administrative and criminal proceedings.
 - 1.2.2** Regulations of legal conduct.
 - 1.2.3** Regulation of legal administrations.
 - 1.2.4** Adequacy of legal procedures.
- 1.3** The Code of Procedure in conjunction with the Penal Code, shall be applicable to the State of San Andreas in its entirety, and those that reside within.
- 1.4** Justice is carried out on the basis of equality and shall not be discriminative of protected characteristics.
- 1.5** Upon the issuance of an arrest warrant, published and officialized by a senior judicial officer, acting on behalf of the Department of Justice, shall remain active until its execution, or until its rendered expired, as appointed by the senior judiciary officer. This warrant may be executed at any given time or place, within the boundaries of the State of San Andreas.
 - 1.5.1** An arrest warrant shall be approved and officialized by a senior judiciary officer, it shall contain the clear identification of the perpetrator, it shall describe the criminal charges, as conducted by the perpetrator and it shall command the perpetrators arrest.



Article 2. Concepts and definitions

- 2.1** An investigation is a procedure conducted by the appointed officials of the State, they may examine the circumstances associated with a criminal offense, to establish its nature and those responsible.
- 2.2** Law Enforcement Organization – an appointed authority that enforces legislation of the State.
- 2.3** An attorney – a legally licensed professional, approved by a senior official of the Department of Justice, who represents the interests of the accused, within matters of law.
- 2.4** Miranda Rights – Rights that must be administered to a suspected party prior to questioning/arrest/prosecution.
- 2.5** Presumption of innocence – Any suspect shall be considered innocent of their accused criminal offenses, until proven guilty beyond a reasonable doubt, without hearsay or assumption.
- 2.6** All parties involved in a matter of law, must be able to justify their claims, with the relevant evidence.
- 2.7** Evidence may be deemed inadmissible by the court of law, based on its origin, content, and its validity.
- 2.8** A crime scene or active situation is defined as an area where two or more law enforcement officers are present where their intervention is crucial for public safety and/or where they are investigating and dealing with a crime. This area may be outlined by emergency service vehicles being present and using their emergency lights and sirens. Citizens may be asked to leave. Failure to leave the area may result in a criminal charge of Penal Code 3.5 Failure to comply and/or 3.2 Obstruction of Justice.
- 2.9** Reasonable Suspicion is defined as having specific and articulable facts, taken together with rational inferences from those facts.
- 2.10** Probable Cause is defined as possessing reasonable grounds and corroborating evidence to suspect someone of committing a crime, and based on which law enforcement officers may complete arrests, warrants, searches or other legal actions.



Article 3. Reasonable and justifiable force

- 3.1 The principle of adequacy – a state employee is obligated to act with the appropriate conduct
- 3.2 The principle of urgency – a state employee is obligated to act without delay.
- 3.3 All use of force must be reasonable and justifiable.
 - 3.3.1 Non-physical force – justifiable force that does not require physical intervention.
 - 3.3.2 Restrictive force – justifiable force that is necessary for detention.
 - 3.3.3 Non-lethal force – justifiable force used at the time of threat, that does not cause threat to another life.
 - 3.3.4 Lethal force – justifiable force used at the time of threat that does cause threat to another life.
- 3.4 During an emergency situation at Fort Zancudo or the Department of Corrections, initiated by either an alarm sounding or power cut, the use of Lethal Force is justified.
- 3.5 All law enforcement agencies are permitted to take usage of any measure necessary for the purpose of stopping a vehicle that has been ordered to stop no less than twice.
 - 3.5.1 The usage of vehicle-fitted engine blocking equipment and engine blockers must follow the above. They may only be used after a vehicle has been ordered to stop no less than twice.
Exception: Vehicles within the National Guard base must only be ordered to stop once.
- 3.6 A passenger of a vehicle may not be charged for involvement in cases of a traffic offense but if the driver is suspected of violating the Penal Code where the crime is not a traffic related felony, the passenger(s) may be detained and searched in accordance with Article 7 and may be charged and arrested on the grounds of complicity should any items be found on them which directly involves them with said crime, thus confirming the officer's suspicions.



Article 4. Detention and arrests

- 4.1 Detention is a short-term deprivation of the citizens' right to liberty. The usage of detention shall not be seen as an infliction of guilt, but rather a period of time for the law enforcing officers to gather the necessary evidence, for a potential incrimination.
- 4.2 A citizen may be detained on the suspicion of a criminal offense.
- 4.3 A citizen may be detained for the purpose of identification as and when required by law.
- 4.4 For procedures surrounding arrest and detention, please see the *“Procedure for detention and arrests act”*.
- 4.5 A detention period may not exceed twenty-five (25) minutes, this timer shall pause the moment the detainee requests legal representation.
- 4.6 The arresting officer is obliged to ensure their body-worn camera is recording throughout the detention and arrest of the suspect. The arresting officer is also obliged to be able to present footage of arrival to the scene and a crime being committed by their suspect either from their own or a colleague's body-worn camera.
- 4.7 After the legal representative has had their client sign their contract of defense and spoken to their client, they will request body-worn camera footage from the arresting officer. The officer then has ten (10) minutes to provide their footage as evidence and show the legal representative footage of their client committing a crime. The attorney then has 15 minutes to review the bodycam footage in accordance with article 6 of the Lawyers Code.
Note: If the evidence has not been shown within 10 minutes, the attorney will inform the officer that the client must be released and all evidence can be submitted to the district court to issue an arrest warrant providing the evidence is valid.
- 4.8 Any detention or arrest carried out by a civil servant or military staff, should adhere to the procedure for detention found within the *“Procedure for detention and arrests act”*



4.9 Any individual with a federally issued warrant, should be processed with accordance to the “*Procedure for detention and arrests act*”.

4.9.1 An attorney cannot request an individual with a federally issued warrant be released of detention, due to lack of evidence, but may still bail said individual. The attorney may still waive additional charges.

4.10 Any individual with a warrant out in their name should be processed in accordance with the “Procedure for detention and arrests act”. However, legal representation has no right to request release of a person in the event there is a valid warrant signed by the Courts of San Andreas. They can instead appeal the arrest after said person has spent their time in prison if they suspect the arresting officer of violating these rights in accordance with Article 6 of the Code of Procedures.

Note: When arresting someone for a warrant, the warrant number should be used for the fine reason and the wanted reason.

4.11 When reading rights to more than one individual being transported to the Department of Corrections facility, the officer(s) must ensure that each individual being arrested understands these rights in accordance with articles 2.1 and 2.8 of the “Procedure for detention and arrests act”.

Example: Two people being arrested can have their rights read at the same time. In the case there are different charges, these should be made clear to each individual.



Article 5. Procedures for those who hold immunity

- 5.1** Any individual possessing full immunity, who is suspected of committing a criminal offense, may only be investigated once evidence has been collated and provided to the Attorney General of San Andreas. The Attorney General may revoke the immunity of the individual and bring the matter to the Supreme Court of San Andreas where the Supreme Court Justice will determine the guilt of the individual providing all reasoning and justification to the Attorney General.
- 5.1.1** If the Attorney General or Supreme Court Justice is suspected of violating the law, the evidence shall be considered by the Immunity Review Board in accordance with Article 5.5.
- 5.2** The Attorney General conducts investigations into individuals with Immunity. The Supreme Court may order the Attorney General to conduct this investigation.
- 5.3** An individual with full immunity cannot be searched, interrogated, stand trial or face other procedural actions, without a warrant from the Attorney General. An individual with full immunity may only be arrested with a warrant from the Supreme Court.
- Exception: Fully immune individuals may be detained for either identification or to prevent imminent risk to life.***
- 5.3.1** In case of the Attorney General or Supreme Court Justice, any procedural actions may only be carried out, with a warrant issued by the Immunity review board in accordance with article 5.5.
- 5.4** In the event of procedural actions being taken against multiple individuals with full immunity within Government, the Federal Investigation Bureau leads the organization of a meeting with all state organization leaders (Except those in which procedural actions are being taken) The meeting can result in the following outcomes:
- Impeachment of the Governor including the termination of the government.
 - Impeachment of the Governor including the termination of other government officials.
 - Termination and arrest of specific state employees with full immunity.
 - No further action to be taken.



- 5.5** The Immunity Review Board (IRB) consists of the leaders of the following State Organizations: LSPD, SAHP, FIB, NG and GOV.
- 5.5.1** Should evidence arise against the Attorney General or Supreme Court Justice, the evidence shall be presented to a member of the Immunity Review Board and they shall act as the chairperson and prosecutor along with their District Attorney, of the Immunity Review Board.
- 5.5.2** The Chairperson of the IRB is responsible for arranging, leading, and concluding a meeting of the IRB where the evidence shall be presented to the IRB by the Chairperson if the Chairperson deems the evidence significant enough to be presented to the IRB.
- 5.5.2.1** If the evidence is against the Attorney General, the Supreme Court Justice may be present at the meeting to mediate and give legal advice to the IRB to ensure the review runs smoothly or to give advice at the discretion of the Board.
- 5.5.2.2** If the evidence is against the Supreme Court Justice, the Attorney General may be present at the meeting to mediate and give legal advice to the IRB to ensure the review runs smoothly or to give advice at the discretion of the Board.
- 5.5.3** During the meeting, once the evidence is presented, the board shall discuss and review the evidence and may go over the evidence as many times as required. Once the discussion has come to an end, the board shall hold a majority vote to revoke immunity for the accused and carry the evidence to a trial whereby the accused will stand as defense.
- Note: *The Chairperson cannot cast a vote as they are prosecution.***
- 5.5.4** Should the board vote to bring the case to trial, the chairperson will stand as prosecution represented by their District Attorney. The accused will stand as defense and the board will reside on the bench of the courtroom. The defense may stand alongside legal representation which may be any member of the Department of Justice. At the beginning of the trial, each member shall state their full name and the Organization they are the leader of.
- Note: *The courtroom shall be open to peers from state organizations.***
- 5.5.5** During the trial, the prosecution will present the evidence to the court. The defense will then be given a chance to present their evidence and make their argument. Afterwhich, both sides may debate the evidence as the board listens and hears both sides in their arguments. The trial will recess for 10 minutes to allow for the board members to discuss the evidence if they so wish.



- 5.5.6** Once the recess has come to an end, the prosecution and then the defense will be given the chance to provide a closing statement then each member residing on the bench will state one after the other to the court whether they find the defendant guilty or not guilty. If the majority vote is guilty, each board member on the bench shall sign a warrant for the arrest of the defendant and the defendant shall be arrested. If the board does not cast a majority guilty vote, the defendant's immunity is reapplied and the court trial will come to an end.
- 5.5.7** Should the defendant be found not guilty, the evidence cannot be used again and will be sealed. Any attempt to re-introduce the evidence will be considered as double jeopardy and will be filed as Professional Misconduct.
- 5.6** During the detention or arrest of an individual, if it is discovered that they have had their identity classified, they may still be held in detention until their identity has been positively confirmed.
- 5.6.1** Upon identification, if the suspect holds full immunity, they shall be released immediately without delay, pursuant to the preceding articles.
- 5.6.2** Upon identification, if the suspect holds incomplete immunity and is a member of a state organization, the arresting/detaining officer may continue the procedure in accordance with Article 10.4 and Procedure for Detention and Arrests Article 4.21.
- 5.6.3** If the individual is found to be a qualified informant and were gathering evidence on behalf of the Federal Investigation Bureau at the time of the arrest, the FIB shall assume responsibility of the arrest and take decisive action on the suspect depending on risk of cover being blown.
- 5.6.4** If the individual is found to be under witness protection, their classification and immunity may only be revoked with approval of the Supreme Court. The Supreme Court must be notified and presented with evidence for approval prior to any arrest.
- 5.6.5** A suspect may be positively identified by providing their State Organization ID, showing their Organization and Rank. Where the suspect cannot or refuses to provide State ID, the Federal Investigation Bureau shall be called to assist in identifying the suspect. Failure by a suspect to provide their State ID when they are employed by a state organization may lead to further charges of PC 3.6 - Failure to Identify and PC 3.2 - Obstruction of Justice.



Article 6. Grounds for release of a suspect

- 6.1** A Suspect shall be released from detention if one of the following applies.
- No justification to believe the individual was involved in a criminal offense, or no direct evidence of the individual's guilt.
 - No grounds for the application of a felony classed criminal offense.
 - Multiple violations of the *Code of Procedures*.
- 6.2** Major or multiple violations in accordance with “*Procedure for detention and arrests act*” shall lead to the immediate release of the detainee.
- 6.2.1** Failure to complete the Procedures described in the “*Procedure for detention and arrests act*”, before the end of the 25th minute, from the minute of detention, shall result in immediate release of the suspect.
- 6.2.2** Minor violations of the “*Procedure for detention and arrests act*” can be argued with the arresting officer in the case of a DOC defense case for a reduction in fines, sentencing and up to release of a suspect. In the case of court, the arguments shall be made to the presiding Judge.
- 6.3** Detainees shall not be released where they are already wanted by means of a federal warrant (wanted by the state) but may still have all other charges dropped.
- Exception: By court ruling.***



Article 7. Search as a procedural coercive measure

- 7.1** Any individual may be subjected to a search of their person, this may take place as part of the detention and arresting procedure, as described in the “*Procedure for detention and arrests act*”, or if warranted by any senior member of the court of San Andreas.
- 7.2** Any state citizen within the vicinity of a U.S.S.S guarded person, whilst in the proximity of capitol may be subjected to a search of their person by any member of the U.S.S.S or High Commanding government officials.
- 7.2.1** Any state civilian may be requested by an employee of the state, to subject themselves to a search of their person, on the grounds of their continued presence in the proximity of state property, should the civilian refuse, they may be served a notice of trespass.
- 7.3** The searching of properties is to be conducted for one of the following reasons:
- To apprehend those suspected of committing a criminal act.
 - To assure the safety of those who may be located within said building.
 - Probable cause to believe narcotics are being grown on the property
- 7.3.1** To conduct the search of a building within a property, the law enforcement agency must have one of the following
- A warrant from the Attorney General or the Supreme Court
 - Consent from the deed holder.
 - Evidence to suggest the possibility of a threat on the life of another citizen of the State of San Andreas.
- 7.3.2** If a suspect fled into a property and/or building, the law enforcement agency is to maintain a cordon around the perimeter of said building. Anyone found in breach of said perimeter, may be detained under suspicion of *Obstruction of Lawful activity*. The perimeter allows law enforcement officers to request a warrant for the search of said building, prior to the entrance of the building. The building cannot be entered without the required warrant.



- 7.4** A search of a vehicle may only be carried out under the following circumstances:
- Warrant from the Attorney General or the Supreme Court
 - The vehicle is involved during a felony criminal act or chase of a suspect.
 - During a raid, approved by the Governor, the Attorney General or the Supreme Court.
 - During checks of state organizations, sanctioned by the Government.
 - The vehicle is located in a suspicious and/or criminal area and violates a legislative piece of the State of San Andreas.

Article 8. Small claims court

- 8.1** The small claims court is a civil legal process between two (2) parties to resolve disputes involving monetary compensation.
- 8.2** All state citizens may file a claim directly to the small claims court, without the presence of legal representation, the judiciary member solely delivers a verdict based on the testimony of the parties involved.
- 8.2.1** Small Claims Court shall be, in the first instance, heard by the District Court.
- 8.2.2** Following the ruling of a District Court Judge, parties involved have the right to appeal the verdict to the Supreme Court, within twenty-four (24) hours.
- 8.3** For the procedures of the Small Claims Court, please see the information in article 4 of the “*Procedures for Court Trials*” legislative document.



Article 9. The Court of Law in the State of San Andreas.

9.1 The District Court shall hear the following cases:

- Any and all civil cases.
- Any and all criminal cases where the prosecution is a Law Enforcement Officer against a civilian
- Any and all criminal cases where the defense is not the Federal Investigation Bureau, the Government of San Andreas, a classified individual or an individual possessing incomplete or full immunity.

9.1.1 A District Court Judge has the following judicial powers.

- Issue arrest warrants for citizens who do not hold immunity status.
- Issue a warrant of seizure of property following a civil case.
- Issue a sentence of imprisonment up to the maximum allowed by legislation.
- Issue a verdict on fines up to \$1.000.000
- Issue a subpoena for appearance or information.
- Issue a gag order.
- Hold individuals in contempt of court.
- Issue an order for the removal of any license, apart from the license to practice law.
- May review casefiles submitted by the Federal Investigation Bureau, if so directed by the Attorney General or Supreme Court
- May issue an order for reparations/compensation to be paid to the plaintiff by the defense in a civil/criminal trial of up to \$500.000. (The approval of the Supreme Court is required for more than \$500,000 but may be left undecided awaiting approval from the supreme court after a trial).
- Issue a warrant to authorize the sealing of a business.
- Issue a warrant for arrest of a person possessing incomplete immunity with permission from the Supreme Court.

9.1.2 Any citizen or state employee directly involved in a case holds the right to appeal a decision taken by the District Court. This appeal must be addressed to the Supreme Court of San Andreas.



9.2 The Supreme Court shall hear the following cases:

- All cases which the District court can hear.
- Any and all Criminal Cases. (If the defense possesses incomplete or full immunity status, this shall be considered temporarily revoked until the end of the trial.

9.2.1 The Supreme Court Justice has the following Judicial powers.

- All Judicial powers granted to the District Court Judge
- Revoke a first-person immunity
- Issue arrest warrants for individuals with immunity status
- Issue a verdict on fines of any amount
- Grant witness protection status
- May review casefiles submitted by the Federal Investigation Bureau
- May assign and revoke districts to/from District Court Judges.
- May revoke a casefile from a District Court Judge, if deemed too complex or of significant importance, to be processed by the Supreme Court.
- May assign personnel deemed necessary in accordance with their lawful duties to his/herself and to that of the Attorney General. Said personnel shall be chosen and vetted by the official of which they are assigned to.
- May issue licenses to practice law to any citizen passing the requirements set by the Attorney General.
- May reject, revoke or remove from the Department of Justice, any individual and/or their license to practice law for any reason.
- Holds the final say in the implement, revoke or amend any given charge or citation as a verdict during a trial, criminal case and/or warrant.
- May issue an order for reparations/compensation to be paid to the plaintiff by the defense in a civil/criminal trial of up to \$1,500,000.
- May accept or reject an appeal submitted as a result of a verdict written by or declared by the District Court.
- May add individuals to the centralised Government blacklist database, known as a “Global Blacklist” for up to 30 days preventing them from joining any State Organization.



- 9.3** The Attorney General has the following Judicial powers.
- All the Judicial powers granted to the Supreme Court Justice, apart from:
 - May assign and revoke districts to/from District Court Judges.
 - Hold individuals in contempt of court
 - Holds the final say in the implement, revoke or amend any given charge or citation as a verdict during a trial, criminal case and/or warrant.
 - May issue an order for reparations/compensation to be paid to the plaintiff by the defense in a civil/criminal trial.
 - Holds the right to implement, revoke or amend any given legislation within the legislative documents of the State of San Andreas, including executive orders.
 - May perform routine or unscheduled inspections on any state Organization.
 - May revoke Global Blacklists.
 - In conjunction with the Governor, oversees the Department of Corrections.
- 9.4** For the procedure of Court Trials, please see the information in “*Procedure for Court Trials*” legislative document.
- 9.5** All evidence submitted to the Department of justice can be held for no more than 7 days from its point of origin. The same applies for body-worn camera footage in that it is only valid for 7 days since the initial recording of said footage.
- 9.5.1** This means that all cases must conclude within 7 days of the original footage being recorded.
- 9.6** The Department of Justice will be responsible for keeping a record of all court cases. The Judge for each case will keep a record of the entire case in the form of body-worn camera footage.
- 9.7** In the absence of a Government holding office, the Federal Investigation Bureau resumes the right to host the Department of Justice under the Federal Court.
- 9.7.1** Once enacted, the Federal Court will call upon all State Attorneys and Judiciary members of the former Department of Justice including the Attorney General and will require them to join the



FIB to form the contents of a standing Department of Justice under the Federal Court.

- 9.7.1.1** All standing Private Attorneys will be required to attend the FIB headquarters and request to continue their work. The FIB reserves all rights to deny their request in which case, they will be ordered to hand in their license to practice law immediately.
- 9.7.1.2** All Standing District Attorneys from other state organizations will be required to attend the FIB headquarters to present their passport and will be allowed to continue working in the interests of their own organization once they have registered with the Federal Court.
- 9.7.2** The Federal Court will appoint no more than two (2) Federal Judges to oversee the Department of Justice and be headed up by the Director of the FIB.
- 9.7.3** The Federal Court will then house the State Attorneys as “Federal Attorneys” which will act in the interests of the DOJ. By default, the District Attorneys already in place for FIB will begin their work within the DOJ alongside the appointed Federal Attorneys to continue their work acting in the interests of FIB.
- 9.7.4** The Department of Justice will remain a separate entity from the Federal Investigation Bureau
- 9.7.5** The Federal Court shall resume the responsibility and act as a replacement for the Supreme Court of San Andreas.
- 9.7.6** The Federal Judges have the following Judicial Powers:
- All the Judicial powers granted to the Supreme Court Justice.
 - May perform routine or unscheduled inspections on any registered attorneys.
- Note: District Court is also replaced by the Federal Court.***
- 9.7.7** The Federal Court will hold their base of operations in the Headquarters of the FIB and will reside in the FIB with exception to hosting court in which case, the courtroom in the Capitol shall still remain operational for hearings.



- 9.8** No single person, nor group of people, can be held accountable for a crime more than once. This would be double jeopardy. Any acts of double jeopardy or attempted acts may result in charges in accordance with Penal Code 5.4 Contempt of Court or 4.2 Professional Misconduct.
- 9.9** For information on oaths and taking statements, testimonies and depositions pre-trial and during trial, please see the *Procedure for placing a person under oath* legislative document.
- 9.10** The Department of Justice has outlined a minimum amount in which reparations/compensation are to be given as a verdict in court. Those amounts are defined below.
- 9.10.1** Clients can be reimbursed for weapons that they were legally allowed to carry in accordance with firearm laws. The value for which are calculated at their state value according to weapon shop priced for that weapon and ammunition at a maximum of \$20.000 per gun and \$170 per bullet.
- 9.10.2** Clients will be reimbursed for their time spent in prison for each month they incorrectly spent time in prison for. This price is set at a minimum of \$2.500.
- 9.10.3** Clients will be reimbursed for all fines found to be incorrectly issued.
- 9.10.4** The guilty party will be ordered to pay the Department of Justice \$100.000 in administration fees.
- 9.10.5** The guilty party can be ordered to pay a standing fee of \$250.000 in reparations for incorrect prison time.
- 9.10.6** The guilty party can be ordered to pay an amount that will be determined for damages and reasonable miscellaneous funds.
- 9.10.7** The guilty party can be ordered to pay a partial amount of their fines, if convicted of a crime, to the claimant.
- 9.10.8** These amounts are subject to change depending on the severity of the crimes committed and other factors determined by the judge during the trial such as evidence. The court will produce an itemized invoice if reparations/compensation is awarded.



- 9.11 The Department of Justice has the right to invoice each organization in the event their suspect has requested a lawyer during processing and they fail to provide valid body worn camera evidence to the state attorney present or if bench trials are taking place, the court.
Note: This will be charged at \$50,000 for each case where the officer fails to provide valid body worn camera footage due to issues turning it on and refreshing bodycam where required. This fee will either be submitted in an invoice or deducted during payouts from the POGGERS act.
- 9.12 Complaints regarding court orders from the District Court may be submitted to the Supreme Court for review, however, until the Supreme Court has responded to state that the court order has been dismissed, the order shall still be followed. This includes but is not limited to verdicts, warrants and subpoenas.
- 9.12.1 Complaints regarding court orders from the Supreme Court can be submitted to the Supreme Court or Attorney General for review, however, until the Supreme Court or Attorney General has responded to state that the court order has been dismissed, the order shall still be followed. This does not include verdicts made in court as the Supreme Court has the final say as per article 9.2.
- 9.12.2 No person, nor entity has the right to withhold information requested by the Department of Justice.
- 9.13 After a guilty verdict from the presiding Judge during a bench trial, the Judge may take into account the final statement of the guilty party and time spent already apprehended during the proceedings of court.
- 9.13.1 Final statements may be taken into account and allow for up to a 50% reduction in sentencing including fines.
- 9.13.2 Time spent may be calculated at a 2:1 ratio. For example, 30 minutes spent in court could reduce a sentence by up to 15 months at the judge's discretion and depending on the severity of the crime(s) committed.
Note: Minimum sentencing will always be applied. Sentences shall be reduced to no less than 15 months.
- 9.14 The Attorney General and Supreme Court Justice are of equal rank to one another but have different responsibilities. Together, they form the head of the Department of Justice, reliant on one another.
- 9.15 The appointment of the Attorney General shall be made in accordance with the procedures set forth in the *San Andreas Political Code*.



9.16 The appointment of the Supreme Court Justice shall be made by the Governor of San Andreas following a joint recommendation of the Attorney General and the sitting Supreme Court Justice, and shall take effect only upon the concurrence of the Governor, the Attorney General, and the sitting Supreme Court Justice.

9.16.1 The joint recommendation to the Governor of San Andreas from Attorney General and the sitting Supreme Court Justice for person to be appointed as the Supreme Court Justice shall be based on prior experience of the person as a Justice in the Supreme Court or as an experienced Judge in the District Court of San Andreas.

Note: *In the event that any of the required offices is vacant, the concurrence required for the appointment and joint recommendation may proceed without them, subject to authorization by the Federal Government.*

9.17 The appointment of the Judges of the District Court shall be made by the Supreme Court Justice. In making appointments, the Supreme Court Justice may determine the procedure, which may include applications, interviews, and any other assessments, and shall have full discretion based on a candidate's knowledge, experience, understanding of the law and performance, according to criteria set by the Supreme Court Justice.



Article 10. Legal immunity law

- 10.1** Legal immunity is a legal status, wherein the possessing individual cannot be held liable for violations of the law, unless written approval from the Supreme Court, the Attorney General or the immunity review board is present.
- 10.2** Full immunity status is given to the following individuals
- The Governor
 - The Vice Governor
 - Leaders of state organizations.
 - Deputies of state organizations.
 - Judiciary members of the Supreme Court
 - Judiciary members of the District Court
 - Judiciary members of the Federal Court
 - The Attorney General
- 10.3** The personal information of those holding full immunity, must be kept confidential by the Federal Investigation Bureau.
- 10.4** Incomplete immunity is a legal status, wherein the possessing individual cannot be held liable for violations of the law, without the consent of one of the following individuals
- The suspect's organization leader.
 - The suspect's organization deputy leader.
 - By the warrant of a senior member of the Judiciary chambers.
 - By the warrant of the Attorney General
- 10.5** Incomplete immunity status is given to the following individuals
- Chief of Staff
 - Division directors and their Deputies within state organizations.
 - 00 agents within the Federal Investigation Bureau
 - Undercover law enforcement officers approved of the Director of Federal Investigation Bureau.
 - Qualified informants, approved by the leader of a state organization, the Supreme Court or the Attorney General.
 - High Command Military personnel appointed by the General of the National Guard
 - Individuals protected by witness protection, granted by the Supreme Court or the Attorney General



- 10.6** Individuals with full immunity, have the right to wear and use special equipment to ensure their own safety, in absence of government guards.
- 10.7** Vehicles used or owned by individuals with full immunity, cannot be stopped, inspected or searched, without an order from the Attorney General, Supreme Court or the Immunity review board.
- 10.7.1** In addition to this, all vehicles driven by individuals with full immunity status or vehicles where the individual is a passenger are completely immune from all traffic code violations at all times as they are considered “VIPs” and must move quickly and safely throughout the state.
- 10.8** The following individuals may have their identities classified.
- The Governor
 - The Vice Governor
 - Leaders of state organizations.
 - Deputies of state organizations.
 - Judiciary members of the Supreme Court
 - Judiciary members of the District Court
 - Judiciary members of the Federal Court
 - The Attorney General
 - Chief of Staff
 - Division directors and their Deputies within state organizations.
 - 00 agents within the Federal Investigation Bureau
 - Undercover law enforcement officers approved of the Director of Federal Investigation Bureau.
 - Qualified informants, approved by the leader of a state organization, the Supreme Court or the Attorney General.
 - High Command Military personnel appointed by the General of the National Guard
 - Individuals protected by witness protection, granted by the Supreme Court or the Attorney General.
 - Spouses of the Governor, Vice Governor, Attorney General and Supreme Court Justice.
- 10.9** County Commissioners in the Government shall have Political Immunity and any arrest or disqualification arising from a criminal offence shall only occur upon conviction by the court of competent jurisdiction.



Article 11. Ethics Code

- 11.1** The Ethics Code is a set of principles and basic rules of conduct that all citizens of the state of San Andreas must abide by.
- 11.2** General rules of conduct are as follows.
- To show politeness to each other, and to all state employees.
 - To cooperate and assist with the state organizations.
 - To be honest and fair with themselves and those around them.
 - To not neglect state property or commit acts of vandalism.
 - To not discriminate against protected characteristics.
- 11.3** Rules of conduct in public places.
- To not make excessive noise.
 - To always communicate in English.
 - To always be dressed.
 - To not perform sexual acts
 - To not use vulgarity in any language.
- 11.4** Professional ethics.
- Every employee of a state organization must be polite and respectful to visitors and colleagues.
 - Every employee of a state organization must comply with the chain of command.
 - Every employee of a state organization must act professional, and not take usage of direct insults towards citizens in their speech.
 - Every employee of a state organization must treat the property of others and of state with respect.
 - Every employee of a state organization must improve their workings skills and help their colleagues to progress.
 - Every employee of a state organization must be honest with their colleagues and superiors.
 - Every employee of a state organization must be secretive of information obtained in the course of their official duties.
 - Every employee of a state organization must comply with the charter of their organization.



Article 12. Dress code and body-worn cameras

- 12.1** All employees of a state organization are prohibited from having any tattoos on their hands or face and face paint.
 - 12.1.1** Exceptions may occur, when it is required for special undercover work.
- 12.2** All employees of a state organization are required to follow the employing organizations set dress code.
- 12.3** All employees of a state organization are prohibited from displaying their accessories during their official duties.
 - 12.3.1** Accessories shall be defined as items, not necessary for the procedural actions of their official duties.
 - 12.3.2** Shoulder pets, wrist-accessories, glasses, earrings, or other means of self-expressional items may be worn, with the approval of their leader.
- 12.4** All employees of a state organization shall perform their official duties in attire deemed reasonable for their workplace and the purpose of their duties.
- 12.5** All employees of a state organization are required to record videographic evidence of their official duties and store their recordings for no less than 48 hours. These recordings are to be presented to the Department of Justice, on request.
 - 12.5.1** All state employees must carry a recording body-worn camera, during impactful interactions with members of the public or other state employees. This footage must be held available for no less than forty-eight (48) hours.
 - 12.5.2** All state employees are required to start their body-worn cameras at the start of each shift.
 - 12.5.3** Body-worn cameras must be refreshed after experiencing a “Code-A” or after changing uniforms/clothes.
 - 12.5.4** Body-worn cameras must be started after any situation where an employee finds themselves having to get on duty after a “bad dream”.
 - 12.5.5** Body-worn cameras must be started again in accordance with 12.5.2 after 4AM each day as the cloud servers reset at this time for scheduled daily maintenance.



12.5.6 State employees are not required to hold body-worn camera footage during their performance of state-issued services, however, if a situation where a state employee is performing state-issued services were to escalate to the point where they stop their performance of state issued services, they are to ensure that their body-worn camera is in an active state in order to capture such an escalation without having to activate their body-worn camera.

State issued services are defined below:

- SAHP issuing license plates and insurance at their HQ.
- EMS in their hospitals issuing medical assistance to the general public.
- Government employees within the premises of the Capitol going about official duties except USSS responding to gunfire in or around the Capitol grounds.
- Government employees within the premises of DOC going about their official duties except USSS and Correctional Officers responding to gunfire in or around the premises of DOC.
- State Attorneys during DOC defense cases and Bench Trials.
- All State employees within locked areas of their respective HQs carrying out administrative activities such as paperwork, interviews etc.
- The National Guard guarding their base except situations that would require intervention from the soldier on duty such as civilians approaching their gates or if they are attacked etc.

12.6 Balaclava masks obtained from each Organization's warehouse may only be worn if one of the following criteria is met:

- On Duty Special Forces
- On Duty Undercover Agents (To conceal their hidden identities)
- On Duty classified members of state
- Off Duty members of state with Full Immunity
- Members of State participating in Special Missions (See Article 13.1.14)
- United States Secret Service assigned to the protection detail of a first person of the state. (Governor, Vice Governor, Attorney General and/or Supreme Court Justice)
- Soldiers of the National Guard taking part in activities outside the perimeter of Fort Zancudo to avoid the automatic application of wanted status in the case of a shootout.



Article 13. Engagement code.

13.1 General provisions

- 13.1.1 All state organizations residing in the State of San Andreas are accountable to the Governor.
- 13.1.2 The executive branch of the State of San Andreas is headed by the Governor
- 13.1.3 All state organizations are guided by their internal regulatory charters/regulations.
- 13.1.4 State organizations must comply with the legislation of San Andreas and charters/employee contracts must be submitted to the Attorney General for approval before use.
- 13.1.5 State organization leaders have the right to request funding from the Government.
- 13.1.6 All employees of the state organization are prohibited from having links with any criminal organization or gathering.
- 13.1.7 Exception may apply, when the connections serve the purpose of bettering the outcome on an investigation.
- 13.1.8 All employees of the state organization may submit a written complaint about the misconduct of their leader, to the Attorney General.
- 13.1.9 San Andreas Highway Patrol, Los Santos Police Department, United States Secret Service, Federal Investigation Bureau may perform procedural actions in cooperation with one another.
- 13.1.10 Undercover work can only be carried out with the approval of their respective leader.
- 13.1.11 Organizations are required to keep a record of all employees in the form of a roster and must record all of their employee's passports and any changes the employee makes to their names.
Note: If an employee changes their name or make changes to their facial features or appearance, the organization is responsible for keeping a record of their new passport along with their old one and also a record of people that leave the organization.
- 13.1.12 All State employees must keep a clear, up-to-date photo on their Passports and state-issued IDs/Badges. HR and IA, or equivalent bodies of State Organizations, must enforce this through regular checks and/or during the hiring process, and must keep records of all updated passports in accordance with COP 13.1.11.
Exceptions: Individuals with immunity and/or classified identities.



- 13.1.13** The Employer is ultimately responsible for their employees. Therefore they must adhere to the Labour Code of San Andreas and the organization as a whole can be held accountable for the actions of their employees. This includes the actions of previous employees within the valid evidence time frame.

Note: The Court of Law for the State of San Andreas may deflect that responsibility onto the employee where it is apparent that the employee is guilty of a crime and said person can be located and tried in court.

- 13.1.14** Special Missions are defined as missions in which the nature of said mission is to be kept confidential and where substantial time before the mission takes place was set aside to prepare and organize teams or convoys for the mission which includes one or more of the State Organizations.

Example: Ammunition Runs, Encashment, Black Market Raids, Ghetto Patrols etc.

- 13.1.14.1** Missions are not considered Special Missions where the state organizations respond to said mission in response to an alert or alarm either via the PDA (911 calls etc.) or Department Radio request.

Example: Store Robberies, Grand theft auto, House Robberies, Global/Local Reinforcement requests dropped in emergencies, Fort Zancudo Raids etc.



Figure 1
Detailing the perimeter of the city.



13.2 Los Santos Police Department

13.2.1 The Los Santos Police Department is headed by the Chief of Police.

13.2.2 The Los Santos Police Department is a law enforcement agency responsible for the public order within their Jurisdiction.

13.2.3 Los Santos Police Department possess jurisdiction of all areas within the city perimeter of Los Santos. The perimeter is defined by the red line in figure 1 above.

13.2.3.1 This excludes the highways within the city perimeter of Los Santos which fall under the jurisdiction of the San Andreas Highway Patrol.

13.2.4 Los Santos Police Department operations patrols and investigations shall be limited to their designated jurisdiction, except in emergencies, active pursuits, upon request from or in the absence of SAHP.

13.2.5 Los Santos Police Department must provide the maximum assistance to other state organizations, allowed by the attendance of their official duties.

13.2.6 Los Santos Police Department shall refer federal offenses and crimes involving threats to government officials to the Federal Investigation Bureau and National Guard.

13.2.7 Los Santos Police Department employees are immune to legislation regarding the traffic code, during the performance of their official duties.

13.2.7.1 The application of said immunity applies when responding to emergencies, calls and special missions anywhere in the state.

13.2.7.2 If a vehicle is fitted with emergency lights, the officer must use them in cases where the traffic code will be disregarded.

13.2.7.3 During transportation of a 10-15, if the method of transportation has emergency lights or sirens fitted, the usage of them allows officers to disregard the speed limits, provided they do so with care and attention. The health and wellbeing of the 10-15 is still the responsibility of the officer and the officer may exceed the speed limit at their own risk.

13.2.8 The top 6 ranks of the LSPD are as follows: Chief of Police (30), Deputy Chief of Police (29), Chief of Staff (28), Head of Department (27), Deputy Head of Department (26) and Task Force Operative (25).



13.3 San Andreas Highway Patrol

13.3.1 The San Andreas Highway Patrol is headed by the Sheriff.

13.3.2 The San Andreas Highway Patrol is a law enforcement agency responsible for the public order within their Jurisdiction.

13.3.3 San Andreas Highway Patrol possess jurisdiction of all areas outside the perimeter of the city of Los Santos. The perimeter is defined by the red line in figure 1 above.

13.3.3.1 This includes the highways with the city perimeters of Los Santos.

13.3.4 San Andreas Highway Patrol operations, patrols and investigations shall be limited to their designated jurisdiction, except in emergencies, active pursuits, upon request from or in the absence of LSPD.

13.3.5 San Andreas Highway Patrol must provide the maximum assistance to other state organizations, allowed by the attendance of their official duties.

13.3.6 San Andreas Highway Patrol shall refer federal offenses and crimes involving threats to government officials to the Federal Investigation Bureau and National Guard.

13.3.7 San Andreas Highway Patrol employees are immune to legislation regarding the traffic code, during the performance of their official duties.

13.3.7.1 The application of said immunity applies when responding to emergencies, calls and special missions anywhere in the state.

13.3.7.2 If a vehicle is fitted with emergency lights, the officer must use them in cases where the traffic code will be disregarded.

13.3.7.3 During transportation of a 10-15, if the method of transportation has emergency lights or sirens fitted, the usage of them allows officers to disregard the speed limits, provided they do so with care and attention. The health and wellbeing of the 10-15 is still the responsibility of the officer and the officer may exceed the speed limit at their own risk.

13.3.8 The top 6 ranks for the SAHP are as follows: Sheriff (30), Undersheriff (29), Chief of Staff (28), Division Chief (27), Deputy Division Chief (26) and U.S. Marshall (25).



13.4 Federal Investigation Bureau

13.4.1 The Federal Investigation Bureau is headed by the Director.

13.4.2 The Federal Investigation Bureau is residing in the State of San Andreas and has federal jurisdiction.

13.4.3 They host the role of an internal intelligence agency and leads investigation in federal crimes.

13.4.4 The Federal Investigation Bureau must provide the maximum assistance to other state organizations, allowed by the attendance of their official duties.

13.4.5 The Federal Investigation Bureau may take command of any situation involving crime, regardless of its status if necessary and the situation appropriately allows for it.

13.4.6 The Federal Investigation Bureau is tasked with keeping records of confidential information and the classification of individuals as stated in the Code of Procedures for the State of San Andreas.

13.4.7 The Federal Investigation Bureau employees are immune to legislation regarding the traffic code, during the performance of their official duties.

13.4.7.1 The application of said immunity applies when responding to emergencies, calls and special missions anywhere in the state.

13.4.7.2 If a vehicle is fitted with emergency lights, the officer must use them in cases where the traffic code will be disregarded.

13.4.7.3 During transportation of a 10-15, if the method of transportation has emergency lights or sirens fitted, the usage of them allows officers to disregard the speed limits, provided they do so with care and attention. The health and wellbeing of the 10-15 is still the responsibility of the officer and the officer may exceed the speed limit at their own risk.

13.4.8 The Federal Investigation Bureau is tasked with taking lead on weapon store robberies.

13.4.9 The FIB's top 6 ranks are as follows: Director (30), Deputy Director (29), Chief of Staff (28), Head of Department (27), Deputy Head of Department (26) and 00 Agent (25).



13.5 United States Secret Service

13.5.1 The United States Secret Service is headed by the Director.

13.5.2 The United States Secret Service is a law enforcement agency, residing in the State of San Andreas with Federal Jurisdiction.

13.5.3 Their first priority is that of the safety of Government Officials and their families, along with all foreign heads visiting the State.

13.5.4 The United States Secret Service holds part of the United States Department of Treasury, and therefore hold responsibility for the state encashment.

13.5.5 The United States Secret Service must provide the maximum assistance to other state organizations, allowed by the attendance of their official duties.

13.5.6 The United States Secret Service Directors and their deputies may use their private vehicles in the performance of their official duties.

13.5.6.1 Private vehicles may not be used to detain citizens.

13.5.7 The United States Secret Service may detain and search anyone who may be within the proximity of Government Officials, in proximity of the Capitol.

13.5.8 The United States Secret Service may detain and search anyone who may be within the proximity of first persons of the state.

13.5.9 The United States Secret Service employees are immune to legislation regarding the traffic code, during the performance of their official duties.

13.5.9.1 The application of said immunity, shall be done with a risk assessment, prior to the performance and must be announced verbally to the occupants of the vehicle that the traffic code will be disregarded for safety reasons. During transportation of VIPs, the Secret Service may disregard the speed limit entirely.

13.5.9.2 If a vehicle is fitted with emergency lights, the agent must use them in cases where the traffic code will be disregarded.



Figure 3: Inside the red border is considered Capitol grounds.



13.6 The National Guard of San Andreas

13.6.1 The National Guard of San Andreas is headed by The General

13.6.2 The National Guard holds the right to perform their official duties in the entire State of San Andreas.

13.6.3 The National Guard is the State of San Andreas' official Military Force.

13.6.4 The National Guard have full authority to request a fee for the service of successful supply runs should a singular organization request more than twelve (12) trucks of ammo a day. The National Guard may then demand a fee of no more than ten thousand dollars (\$10.000) per truck successfully delivered.

13.6.5 The National Guard of San Andreas holds base at Fort Zancudo, where restricted areas apply, to ensure the continuant operation of the base.

13.6.5.1 Yellow zone of Fort Zancudo

A region surrounding Fort Zancudo, controlled and patrolled by the National Guard. Within this zone, the National Guard holds the right to stop and detain any individual for identification. They may perform bodily and vehicular searches, as well as serve the individual a notice of trespass.

13.6.5.2 Red zone of Fort Zancudo

Fort Zancudo Military base, where any individual found with unauthorised access may be detained and arrested, in conjunction with the Penal Code of San Andreas. Any unauthorised suspect that is armed may be shot on sight. Any unauthorised suspect that is witnessed using a vehicle, including helicopters, cars or any other form of vehicle, to force entry to Fort Zancudo may be shot on sight. Any unauthorised suspect who fails to follow the demands of the National Guard to stop their vehicle may be shot on sight.

Note: A person is authorised to enter Fort Zancudo if they have been given permission from a National Guard employee to enter or any people listed in article 13.6.6 who have identified themselves.



13.6.6 The access to Fort Zancudo is granted to the following individuals

- The Governor and their deputies.
- The Attorney General
- The Judiciary members of the Supreme Court
- Individuals attempting to execute a warrant issued by any court.
- Law enforcement officers or State officials who has received authorization from the National Guard.

13.6.7 The National Guard supplies the state organizations with inventory to carry out their official duties.

13.6.8 Should a vehicle transporting inventory during a supply run for a state organization go missing or be stolen, the National Guard is to record the incident internally, which should be provided if they are audited by the Government or Federal Investigation Bureau.

13.6.9 The Military police personnel may patrol the state of San Andreas, in search of deserting military personnel, and charge them with the according offenses in conjunction with Penal Code of San Andreas.

13.6.10 The National Guard employees are immune to legislation regarding the traffic code, during the performance of their official duties.

13.6.10.1 The application of said immunity, shall be done with a risk assessment, prior to the performance and must be announced verbally to the occupants of the vehicle that the traffic code will be disregarded for safety reasons.

13.6.10.2 If a vehicle is fitted with emergency lights, the officer must use them in cases where the traffic code will be disregarded.

13.6.11 The National Guard's top six ranks are as follows: General (30), Lieutenant General (29), Major General (28), Colonel (27), Lieutenant Colonel (26), Major (25).



Figure 2
Fort Zancudo Military Base





13.7 Emergency Medical Services

13.7.1 The Emergency Medical Services is led by the Chief.

13.7.2 The Emergency Medical Services is a state health care system, to the citizens of the State of San Andreas.

13.7.2.1 The Emergency Medical Services must ensure accessible and affordable healthcare and emergency medical assistance for all.

13.7.3 The Emergency Medical Services may conduct scheduled healthcare inspections on the state organizations.

13.7.3.1 The Emergency Medical Services are responsible for supplying and maintaining medical kits and essential medications in state organization warehouses to ensure uninterrupted operations.

13.7.4 The Chief of the Emergency Medical Services has the right to establish rules in relation to medical services and sale of medication, in conjunction with the legislation of San Andreas.

13.7.5 The Emergency Medical Services' employees are immune to legislation regarding the traffic code, during the performance of their official duties.

13.7.5.1 If a vehicle is fitted with emergency lights, the paramedic must use them in cases where the traffic code will be disregarded.

13.7.6 All medical personnel are required to maintain strict confidentiality and proper handling of patient records and health-related information.

13.7.6.1 Medical records may only be accessed by authorized medical personnel and must be stored securely to prevent unauthorized access, tampering, or disclosure.

13.7.6.2 The Chief of EMS is responsible for ensuring that all staff are trained in privacy compliance and that appropriate protocols are in place to report and respond to data breaches.

13.7.6.3 Patient information may not be shared without the patient's consent, except when required by law.

13.7.7 Emergency Medical Services personnel are prohibited from authorizing citizens to possess or carry any controlled substances. Exception: Medications contained within an official medical first aid kit, such as Adrenaline or Morphine, when issued for emergency use.



13.7.8 The top six ranks of the EMS are as follows: Chief (30), Deputy Chief (29), Chief of Staff (28), Head of Division (27) and Deputy Head of Division (26).
Note: There is no defined rank 25 for EMS.

13.8 Department of Corrections

13.8.1 The Department of Corrections is led by the Warden.

13.8.2 The Department of Corrections is a correctional institution of the State of San Andreas, which provides facilities for the incarcerated.

13.8.3 The Department of Corrections is overseen by the Department of Justice and the executive branch of the Government.

13.8.4 Any employee of the Department of Corrections may, for any reason, order any state employee or citizen to vacate themselves of the premises of the correctional facility.

13.8.5 Any citizen within the vicinity of a correctional facility, facilitated by the Department of Corrections, may be subjected to a search of their person by any member of the Department of Corrections or high commanding government officials.

13.9 Department of Services

13.9.1 The Department of Services is led by the Director.

13.9.2 The Department of Services is responsible for the continued operation of the Internal Revenue Services

13.9.3 The Department of Services is responsible for providing licenses to the citizens of San Andreas.

13.9.4 The Department of Services' key goal is to maintain a healthy interaction between the Government and the citizens of San Andreas.

13.9.5 The Department of Services is responsible for providing Government sponsored events to the citizens of the State of San Andreas.



13.10 Department of Justice

- 13.10.1** The Department of Justice is headed by the Attorney General and the Supreme Court Justice.
- 13.10.2** The Attorney General is the legal advisor to the Governor.
- 13.10.3** The Department of Justice oversees the Department of Corrections.
- 13.10.4** The Department of Justice is responsible for providing all individuals held detained with legal representation, should they request it.
- 13.10.5** The Department of Justice shall be unprejudiced in its judgment.
- 13.10.6** The Department of Justice is responsible for upholding the law within the State of San Andreas.
- 13.10.7** The Department of Justice is the governing power in relation to state legislation and practices thereof.
- 13.10.8** The Department of Justice resides within the Capitol of San Andreas.
- 13.10.9** The Department of Justice and its chambers hold precedence over the Court of San Andreas.
- 13.10.10** The Department of Justice is the principal body, in all matters of law within the State of San Andreas.



13.11 State inspections

- 13.11.1** The state inspections are carried out by the Governor or their deputies or the Attorney General.
- 13.11.2** The Supreme Court may order the Attorney General to conduct an inspection of a state organization, with the relevant court judgment.
- 13.11.3** The Government, with the help from the state organizations, may initiate an inspection of a state organization for the purpose of finding prohibited weapons, illegal items or general misconduct within the organization. This may be done by the manner of a bodily or vehicular search.
- 13.11.4** The Governor, their deputies or the Attorney General have the right to initiate an audit of internal regulations and activities of state organizations
- 13.11.5** The Governor, their deputies or the Attorney General have the right to make recommendations to the leaders of the inspected state organization in relation to disciplinary action, including but not limited to complete dismissal of an employee.
- 13.11.6** An order given by the Governor, their deputies or the Attorney General to line up and submit to a state inspection is classified as an order coming from a superior rank to anyone in the organization and must be obeyed at first request. Disobeying this order will be prosecuted under “*Penal Code 4.1 Disobeying an order*”.
- 13.11.7** The Government or Department of Justice shall inspect at least 5 employees at an inspection for their hiring, promotion and previous firing proofs to ensure compliance with article 13.13.



13.12 Identification Requests

- 13.12.1** Employees of a State Organization are required to provide their State Organization Identification Badge upon the first request during any qualifying interaction to the person requesting their identification.
- 13.12.2** Qualifying interactions with exception to Classified Personnel.
- Where another State Employee is asking and has Identified first.
 - When a citizen they have detained is requesting it.
 - When a witness to a detained citizen is requesting it and they are a friend, family member or colleague of that citizen.
 - If the person requesting is an attorney, they are carrying out their official duties as an attorney and have self identified as an attorney by presenting their ID and/or licenses to practice law.
- 13.12.3** Qualifying interactions with no exceptions.
- Where the person requesting is a State Leader, Deputy Leader, Attorney General, Supreme Court Justice or District Court Judge and they have self identified first.
 - To any requesting State Employee during State Inspections.
 - To any State Employee where an agent/officer working undercover has broken their cover either by stating they are a law enforcement official or are wearing state issued articles with civilian clothes.
 - When in areas behind lockable doors and/or gates belonging to or considered the territory of the requester's State Organization. ***Examples: Inside the gates of DOC, LSPD Parking, FIB HQ etc.***
- 13.12.4** Classified members of State may refuse to provide ID during interactions listed in 13.12.2 but must provide either their name and the organization they work for or have another employee identify themselves on their behalf.
- 13.12.5** Employees of the State wearing balaclavas from the Warehouse are considered classified while wearing them in accordance with Article 12.6.



13.13 Logging Ranks for Hiring, Firing and Promotions

- 13.13.1** Human Resources and High Command are responsible for logging passports and ranks received for people being hired into their organization.
- 13.13.2** If a person is joining an organization using another organization's rank as proof of experience, the hiring organization must confirm the experience and rank proofs of the person.
Note: Proof of rank may be obtained by checking the hiring, promotion and firing logs of the organizations, by checking the [state-rank-logs](#) in the Government Emails or holding a meeting with the other organization.
- 13.13.3** If no records of a claimed rank can be located in any official logs, the Organization's representatives may compile all available evidence of the rank from the unit and submit it, along with a formal letter, to the Attorney General's Office or the Supreme Court for verification and/or authorization of a rank.
- 13.13.4** Leaders of organizations may hire people into ranks higher than previously held where that person shows exceptional skill and ability to fulfil their role based on previous experience and vacant positions suited to this person.
- 13.13.5** Law Enforcement Officers currently serving in, or previously holding, high command positions in LSPD or SAHP may join the Federal Investigation Bureau at a rank not exceeding Rank 18, at the discretion of the FIB Director, and must complete an interview conducted by a COS or higher ranking FIB official.
- 13.13.6** No person shall join the Federal Investigation Bureau without first obtaining sufficient experience as a law enforcement officer at the Los Santos Police Department or San Andreas Highway Patrol.
- 13.13.7** When a person is fired from an organization, the HR or HC team is responsible for logging this appropriately with a copy of their passport and their final rank. If someone quits, their log is not required.
- 13.13.8** All ranks should be recorded as the rank name and the rank number.



- 13.13.9** People may be hired into high commanding positions in the case that the leader has faith in their abilities and has selected them for this position. For example, the leader would like someone to become HOD based on their previous experience and abilities.
- 13.13.10** When a person is promoted, their full name, passport number, previous rank name and number, and new rank name and number, must be logged by HR/HC.
- 13.13.11** Internal Affairs or the equivalent are responsible during their checkups, to ensure that a person is not the subject of favouritism and has gained their rank naturally and without bias.
- 13.13.12** Proof of rank is only applicable for people where they have held the rank for 5 or more days. For example, someone's rank proof is invalid if they are promoted and leave the organization before 5 days (120 hours) has passed.
- 13.13.13** Any state employee may receive no more than two promotions per 7 day period.
Exceptions: Any further promotions for any employee shall be approved by the Federal Government.
- 13.13.13.1** A promotion to a high-command position shall count toward the two-promotion weekly limit under COP 13.13.13. High command personnel are limited to one promotion per seven (7) days, except when the promotion is necessary to fill an important vacancy.
- 13.13.14** Employees should not be promoted simply for turning up to events or for simply being on duty at a specific time. Promotions should be a reward for hard work within the organization.
- 13.13.15** No employee shall be promoted within the first 3 days of being hired, as this period serves as their mandatory evaluation and probation period.
Exceptions: Promotions directly required for completing approved training may be granted.



- 13.13.16** If a high command vacancy cannot be filled by prior experienced personnel, it shall be opened to all eligible lower rank, non high command employees to apply.
- 13.13.16.1** Employees with no prior high-command experience in equivalent organizations shall undergo the interview process alongside all other eligible candidates.
- 13.13.16.2** Equal opportunity shall be provided to all eligible employees through a fair application, interview and selection process.
- 13.13.16.3** Each candidate's interview shall be recorded on a valid bodycam and logged through the appropriate channels of their respective organization's Emails, along with other relevant information, for review or audits.
- 13.13.17** There is an allocated maximum number of personnel for the following ranks within State Organizations.
- 13.13.17.1** All State Organizations are entitled to no more than 4 Chief of Staff (Rank 28) in their organization.
- 13.13.17.2** All State Organizations are limited to no more than two Heads (Rank 27) of each department.
- 13.13.17.3** All State Organizations are limited to no more than three Deputy Heads (Rank 26) of each department.
- 13.13.17.4** All State Organizations are limited to no more than 10 Special Units (Rank 25) in their organization.
- Note: *EMS do not have a special unit.***
- 13.13.18** The rank structure of any organization shall be arranged in such a manner that no intermediate rank exists between the ranks vested with immunity under applicable law, and such ranks shall be positioned at the top tier of the organizational hierarchy may be in accordance with their order of precedence as defined by the established chain of command.
- 13.13.18.1** The ranking structure in each Organization for the top six ranks shall be as follows: Leader (30), Deputy Leader (29), Chief of Staff (28), Head of Department (27), Deputy Head of Department (26) and Special Unit (25). ***Exception: Government.***
- 13.13.18.2** The names of each rank may vary with organizations and are defined in the respective previous articles.
- 13.13.19** Any violations of Article 13.13 may result in a charge of Penal Code 3.13.3 Quid pro quo.



Article 14. Election Rules

- 14.1** Once a Government has been elected, after a 30 day period, the election process shall begin again. A second political party is required to apply and be accepted by the Federal Government to trigger the election process.
- 14.2** Each Political Party running for Government during an election shall adhere to the San Andreas Political Code.
- 14.3** It is unlawful for any candidate, or anyone involved with political or personal motives for the candidates success, to buy or accumulate votes, by the exchange of money, promises, items or any other means of value.
- 14.4** During the time of voting, there shall be a period of campaign silence. All candidates and anyone with a political or personal motive of that candidates success, shall remain no closer than 500 meters from the place of voting.
- 14.5** Campaigning shall be defined as
- Requesting people to vote for a candidate
 - Advertising through any official channel or through Life Invader.
 - Debating
 - Hosting of events.
- 14.6** All State organizations shall be present during the time of voting to ensure these election rules are upheld, if allowed by the attendance of their official duties.



Article 15. Freedom of information and privacy

- 15.1** Any person holding a valid license to practice law may approach any public servant with access to the PDA and enquire about penalties received, previously committed crimes and number of prison terms for their client.
- 15.2** The information may only be provided if their client is not classified or a person holding full or partial immunity without written consent from said person.
- 15.3** The information requested may be one or more of the following:
- The number of prison terms held by their client
 - Any previously committed crime(s) and the officer who applied the wanted level.
 - Any fines, the fine amount, the officer that gave the fines and the reason for the fine.
- 15.4** If the officer in relation to the above does not belong to the same organization as the person checking the information, they may provide the name of the organization for the officer that applied the fines and/or charges.
- Exception: Where the officer who applied the fines/charges is classified, the officer checking should advise the attorney to speak to FTB instead.***
- 15.5** Any person not holding a valid license to practice law may approach a public servant with access to the PDA and enquire about penalties received in relation to traffic code violations only.
- Note: They must seek legal representation for any other information.***
- 15.6** Citizens must seek legal representation if they wish to recover any funds where they suspect an officer of the law has incorrectly issued any fines or incorrectly charged them for an offense.
- 15.7** If a state attorney or private attorney has their body-worn camera footage subpoenaed, the Department of Justice has the right to refuse to share this footage in case of a breach of client attorney privilege, but will investigate it on behalf of the requester and write up a formal report of their findings.



Article 16. Motoring checkpoints

16.1 A Motoring checkpoint is defined as a point where law enforcement officers may stop vehicles to identify individuals and examine vehicles for breaches of article 8 of the Traffic Code.

16.1.1 Motoring checkpoints can be set up on roads that are not a highway at any time.

16.1.2 Motor checkpoints may only be set up on highways for a specific purpose and must end once this purpose is achieved. These purpose can include but are not limited to;

- a) Reports of criminal activity on the highway.
- b) To slow or stop a car during a vehicle pursuit.
- c) To prevent suspects from escaping a crime scene.

16.2 Checkpoints may only be set up by the San Andreas Highway Patrol or Los Santos Police Department in their own jurisdiction however they may request the assistance of other State Organisations.

16.2.1 The checkpoint must be set up in a manner which slows incoming traffic without causing harm to drivers or placing drivers at undue risk. The state organization who set up the checkpoint will be liable for the safety of all citizens and staff at the checkpoint.

16.3 The checkpoints can be set up for the following reasons:

- To perform inspections on vehicles passing through the checkpoint in line with Traffic Code Article 8.
- To perform spot checks on all citizens passing through the checkpoint for their current wanted status.
- To stop and attempt to trap citizens suspected of participating in criminal activity in that area who match a description provided by and communicated to or from colleagues.

16.4 During spot checks, officers may ask to see the licenses of those passing through. Officers may verify the identity of the driver by running their license plate and/or passport against the PDA. Officers may search vehicles only in accordance with Code of Procedures article 7.4.

Note: Attempting to disrupt the checkpoint can be punished with Penal Code 3.5 Failure to comply and/or Penal Code 3.2 Obstruction of Justice. Any vehicles involved in disrupting the checkpoint may be searched.

16.4.1 Where it is legal and safe to do so vehicles may choose to turn around and leave to avoid passing through a checkpoint that is not on the highway.



- 16.5** During spot checks, officers may ask to see the licenses of those passing through and ask the drivers if they consent to a search of their person and/or their vehicle. If the driver consents, they may proceed with the search.
- 16.6** Check points are considered special zones in accordance with Traffic Code article 5.4. This is defined as from the first barricade of the checkpoint to the last. Officers should monitor the speed of vehicles passing through the checkpoint.
- 16.7** Certain vehicles shall be allowed to pass through without hindrance and the drivers of such vehicles shall not be interrogated or questioned as to their reasons for passing through the checkpoint. Those vehicles include:
- 16.7.1** Vehicles occupied by a person holding Full Immunity Status.
 - 16.7.2** Vehicles owned by state organizations.
 - 16.7.3** Vehicles driven by State Attorneys on their way to and from the Department of Corrections.
- 16.8** All classified people passing through the checkpoint who are not occupying a vehicle owned by a state organization must still identify using their State Issued ID at the request of an officer staffing the checkpoint to validate their identity.
- Note: If they are accompanied by a state employee who is not classified, they can instead have that employee identify on their behalf.***



Article 17. Raiding Criminal Premises

- 17.1** The Federal Investigation Bureau are responsible for initiating raids on the premises of a known criminal headquarters.
- 17.2** The Federal Investigation Bureau are responsible for gathering sufficient evidence to be able to initiate a raid on a criminal headquarters and present said pieces of evidence to the Governor, Attorney General and/or Supreme Court Justice in the form of a raid warrant request.
 - 17.2.1** A total of at least 10 solid pieces of evidence is required to raid the headquarters of a Street Gang.
 - 17.2.2** A total of at least 5 solid pieces of evidence is required to raid the headquarters of a known family-run crime-syndicate.
 - 17.2.3** A total of at least 5 solid pieces of evidence is required to raid the headquarters of a terrorist organization.
- 17.3** A raid warrant is not required in the case that any citizen of the state is abducted, taken hostage and held as a hostage inside the headquarters of a Street Gang.
 - 17.3.1** In the case a raid is initiated by FIB because of a hostage, the FIB are responsible for ensuring the Department of Justice are notified via department radio and that body-worn camera evidence is delivered to the office of the Attorney General by the Director, their deputies or District Attorney on conclusion of the raid.
 - 17.3.2** If the raid is not successful, the FIB is to complete a full situation report to inform the Attorney General as to why they chose to raid, who was being held captive, if the captive was saved and what contributed to their loss. This report shall be delivered to the office of the Attorney General by the Director, Deputies or District Attorney.
 - 17.3.3** A raid on the Gang Headquarters should be initiated prior to negotiations for the Hostage's life. Once the raid has been initiated, state should take strategic positions and prepare to fight once the hostage is safe and secure.
- 17.4** A minimum of twenty (20) members of state are required to be present prior to the initiation of the raid. The raid shall be coordinated with all other law enforcement agencies with a designated meeting point and time and the nature of the special mission shall not be disclosed to anyone outside of those with access to the special access only channels in the Government Emails.
 - 17.4.1** Anyone caught disclosing any information about the raid prior to



its initiation shall be arrested on the spot for Penal Code 4.3 Sabotage, 4.4 Espionage and 4.6 Corruption.

- 17.5** During a raid, the FIB are to search any unidentified person within the perimeter of the raid, any vehicle not belonging to state and give citizens lawful orders to leave the area of operations.
- 17.5.1** If a citizen refuses to leave or loiters in the area after orders are given, the citizen shall be detained and arrested for PC 3.5 Failure to comply. If the citizen poses a risk to life or safety, they are to be dealt with by appropriate force.
- 17.5.2** Evidence of any confiscations should be recorded as required, in the relevant channels of the FIB email server.
- 17.6** The FIB is responsible for keeping body-worn camera footage of the raid for up to 48 hours. This may be requested by DOJ at any time up to the 48hr mark for any reason.
- 17.7** A raid warrant request shall be signed by the Governor, Attorney General and/or Supreme Court once evidence has been reviewed and approved.
- 17.8** A raid warrant is reviewed by either the Governor, Attorney General or Supreme Court. The District Court may also review casefiles at the discretion and under supervision from the Supreme Court.
- 17.9** A raid warrant, once reviewed, is signed and authorised for execution by either the Governor, Attorney General or Supreme Court. Final authorisation to execute is given by command of the Federal Government.
- 17.10** Upon successful conclusion of a raid, any criminals in the area who fought shall be provided with medical attention and arrested for relevant crimes.
- Note: If the raid has not yet concluded and it is safe to do so, these criminals should be taken to DOC for processing as soon as possible using Penal Codes 3.1.6 Banditry and 3.2 Obstruction of Justice, as well as any weapon related offences upon search, brandishing charges, murder or attempted murder charges and/or taking hostage charges if applicable.***
- 17.11** The Governor, Attorney General or Supreme Court Justice may revoke a case file in the case that it has been leaked and/or where safety of the State employees involved in the raid process has been jeopardized. The FIB will be informed via Department Radio that the operation is declared a “no-go” and they shall retreat with leaders and deputies to make their way to the Capitol for a meeting as soon as possible.



Signed into law by the following state leaders:

Governor of San Andreas
Matthew Blackheart



General of the National Guard
Bob Captain



Chief of Police
Krishh Haze



Sheriff of Blaine County
Bob Kirk



Director of the Federal Investigation Bureau
Ash Blanco



Chief of Emergency Medical Services
Alex Snow





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